

25STCV05259 25STCV05259

County: los-angeles

Division: Civil Law and Motion

Department: 735

Hearing date: 2026-08-11

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Case Number: 25STCV05259 Hearing Date: August 11, 2026 Dept: 735

Christopher Gallivan v. Los Angeles

Orthopedic Surgery Specialists, et al.

Demurrer to Complaint

Plaintiff

alleges he sought medical care from Defendants on December 1, 2023, but does not allege the reason he required medical attention, the medical services that defendants performed, and the nature of Plaintiff's injury. Doe defendant Regal Medical Group, Inc. Demurs to the complaint for uncertainty.

Plaintiff

contends he alleged sufficient ultimate facts to state a cause of action. But Regal is not demurring pursuant to Code of Civil Procedure section 430.10 subdivision (e) for failure to state a claim. Instead, Defendant is demurring because Plaintiff's bare allegations that Plaintiff suffered an unidentified injury as a result of unidentified acts of negligence for an unidentified medical issue do not give notice to Defendant – or this court – what happened and what the alleged negligence was.

CONCLUSION

The

court sustains Defendant Regal's demurrer with 20 days' leave to amend.

Defendant

Regal shall give notice.